

25STCP02445 25STCP02445

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP02445 Hearing Date: September 18, 2026 Dept: 833

Edgar Murguia, Case No. 25STCP02445

Hearing:

September 18, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

Los

Angeles County Civil Service Judge:

Joseph Lipner

Commission

and

County

of Los Angeles, Real-Party-in-Interest

Order Granting and

Denying Petition for Writ of Mandate

INTRODUCTION

Petitioner Edgar Murguia ("Petitioner") seeks

a writ of mandate directing the Court to compel the Respondent Los Angeles

County Civil Service Commission (the "Commission") to reverse its decision to suspend Petitioner for 10 days.

The Court tentatively GRANTS the petition. The Court directs the Commission to vacate its decision and comply with *Topanga Assn. for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506. The Court offers no opinion on whether the Commission imposes discipline on Petitioner, and if so, for how long, but the Commission must make clear why it has chosen a particular level of discipline.

However, the Court requests argument on one issue: the Department of Parks and Recreation (the "Department") argues that Petitioner's petition fails because Petitioner failed to include the transcript of the Commission's hearings, which it implies explained why the Commission made its decision. (Opp. at 14:11-18.) Is this a ground to deny the writ, and what is Petitioner's response to this argument?

BACKGROUND

A.

Factual Background

On November 17, 2021, the Department suspended Petitioner from his permanent position of Senior Lake Lifeguard with the County of Los Angeles for 10 calendar days. (AR 3.) According to the Department, the disciplinary action was a result of a concerted effort to suggest to co-workers that Alexis Kearns, a lifeguard, was involved in a sexual relationship and an inappropriate quid pro quo with her then supervisor, Joaquin Falcon, in order to obtain preferential treatment for herself. (AR 3.) Petitioner was alleged to question the validity of Kearns' "Outstanding" performance evaluation, which gave Kearns preferable ranking on the seniority list at Castaic Lake. (AR 3.) The Department also accused Petitioner of failing to maintain confidentiality about this matter during the investigation and discussing it with another subject of the investigation. (AR 3.)

On March 3, 2022, the Commission granted a hearing to Petitioner. (AR 20.)

After hearing dates throughout September, October, and November 2023, the hearing officer released her conclusions of law

and recommendations. (AR 111.) The hearing officer made the following findings of fact:

Petitioner was promoted to his current position as permanent Senior Lake Lifeguard at Castaic Lake in February 2017. (AR 132.) Kearns started as a Lake Lifeguard in 2018, supervised by two beach Captains, Joaquin Falcon and Beth Chatalyan. (AR 133.) Falcon told Kearns that Petitioner and another Senior Lake Lifeguard Oscar Villagomez were spreading rumors about Kearns and Falcon having an inappropriate relationship. (AR 133.) Kearns received an 'Outstanding' rating on her 2019 performance evaluation, given by Falcon and Chatalyan. (AR 133.) Falcon received a thank you gift of a dive watch worth between \$400 to \$1000. (AR 133.) The watch was bought by Kearns with contributions by other lake lifeguards. (AR 133.)

Petitioner raised questions with several employee's regarding the appropriateness of Kearns' outstanding rating, questioning whether there was any favoritism, asking 'what's going on with Kearns and Falcon.' (AR 133.) Petitioner had a conversation with Kearns where he expressed concern that the dive watch created an appearance of impropriety and violated a County policy regarding fraud and conflict of interest, prohibiting gifts. (AR 134.)

Kearns told her supervisor, Falcon, that she felt uncomfortable, bullied, threatened, and undermined in her receipt of her 'Outstanding' rating and that Petitioner and Villagomez spread malicious rumors that she engaged in a quid pro quo in exchange for an 'Outstanding' rating. (AR 134.) Villagomez stated that he knew how Falcon took care of guards and made a thrusting motion of his hips. (AR 135.) Petitioner may have laughed at the gesture. (AR 135.) Petitioner later spoke with Villagomez about the fact that he was having an administrative interview, in violation of county policy. (AR 135.)

According to the hearing officer, the evidence substantiates allegations Petitioner questioned Kearns' "Outstanding' rating, implied there was a quid pro quo, and questioned the relationship between Kearns and Falcon. (AR 131.) Thus, Petitioner was guilty of violating Department policies as alleged. (AR 131.)

However, the hearing officer also stated there was insufficient evidence to say that Petitioner suggested or stated

there was a sexual relationship between Falcon and Kearns, that Kearns gave an expensive dive watch to Falcon in order to obtain preferential treatment for a quid pro quo of an 'outstanding relationship', and that Petitioner intentionally was not forthcoming and honest. (AR 132.) Additionally, there was insufficient evidence to say that Petitioner brought up the question of 'what's going on between Kearns and Falcon' or made statements that they were engaged in an inappropriate relationship. (AR 132.)

Because of the lack of evidence, the hearing officer found the discipline inappropriate and suggested the 10-day suspension be reduced to a five-day suspension. (AR 132.)

On June 5, 2024, the Civil Service Commission announced its proposed decision to accept the findings and recommendation of the hearing officer and reduce the 10 day suspension to 5 days. (AR 143.) Both petitioner and the Department objected to the proposed decision. (AR 144, 171.)

On October 23, 2024, the Commission issued its decision. The Commission overruled the Petitioner's objections and sustained the Department's objections. (AR 244-245.) The Commission rejected the recommendations of the hearing officer to reduce the ten day suspension to five days and announced its final decision to impose a ten day suspension. (AR 245.)

In announcing its decision, the Commission did not make clear if it was making findings different from those of the Hearing Officer. Nor did the Commission explain why it rejected the five day reduction of the hearing officer and instead imposed a ten day suspension. Here is the full decision by the Commission:

On October 23, 2024, the [Commission] overruled the petitioner's objections and sustained the departments objections. The Commission rejected the recommendation of the Hearing Officer, Trudi Ferguson, to reduce the ten (10) day suspension to five (5) days and announced as its final decision to impose a ten (10) day suspension. Commissioner Huntley dissented. Commission Segal was absent.

(AR

249.) It is with respect to this decision that Petitioner seeks a writ of mandate, compelling the Commission to set aside its ten-day suspension.

LEGAL STANDARD

Under Code of

Civil Procedure section 1094.5, subd. (b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (Code Civ. Pro. § 1094.5, subd. (b).)

Because the

decision to suspend Petitioner concerns a fundamental vested right, the independent judgment standard applies to the factual findings made by Respondent. (See *Wences v. City of Los Angeles* (2009) 177 Cal.App.4th 305, 314.) Under the independent judgment test, “the trial court not only examines the administrative record for errors of law, but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo.” (*Bixby v. Pierno* (1971) 4 Cal. 3d 130, 143.) The court may draw its own reasonable inferences from the evidence and make its determinations as to the credibility of witnesses. (*Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners* (2003) 107 Cal. App. 4th 860, 868.) “In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (*Fukuda v. City of Angels* (1999) 20 Cal. 4th 805, 817; see also Evid. Code § 664.)

Petitioner bears

the burden of proof to demonstrate, by citation to the administrative record, that the weight of the evidence does not support the administrative findings. (*Strumsky v. San Diego County Employees Retirement Assn.* (1974) 11 Cal.3d 28, 32; *Steele v. Los Angeles County Civil Service Commission* (1958) 166 Cal. App. 2d 129, 137.) Petitioner “must identify (with citations to the record) the factual findings made by the board that he or she

is challenging and demonstrate (with citations to the record) why those factual findings were against the weight of the evidence.” (Shenouda v. Veterinary Medical Bd. (2018) 27 Cal.App.5th 500, 513.) A reviewing court “will not act as counsel for either party to an appeal and will not assume the task of initiating and prosecuting a search of the record for any purpose of discovering errors not pointed out in the briefs.” (Fox v. Erickson (1950) 99 Cal.App.2d 740, 742 (Fox).) When an appellant challenges “the sufficiency of the evidence, all material evidence on the point must be set forth and not merely [his] own evidence.” (Toigo v. Town of Ross (1998) 70 Cal.App.4th 309, 317.)

“On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.” (Christensen v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.) The interpretation of statute or regulation is a question of law. (See State Farm Mut. Auto. Ins. Co. v. Quackenbush (1999) 77 Cal.App.4th 65, 77.) In addition, “[a] challenge to the procedural fairness of the administrative hearing is reviewed de novo on appeal because the ultimate determination of procedural fairness amounts to a question of law.” (Nasha L.L.C. v. City of Los Angeles (2004) 125 Cal.App.4th 470, 482.)

DISCUSSION

A. Petitioner’s first argument presents is not persuasive based on the current record

Petitioner’s first argument is that the evidence does not support a finding that Petitioner “spread or initiated malicious rumors suggesting an inappropriate sexual relationship” between Kearns and Falcon. (Opening Brief, 5:6-7.)

The hearing officer specifically determined that the “Department failed to prove [Petitioner] spread a malicious rumor that Kearns was engaged in an inappropriate sexual relationship with her supervisor, Falcon.” (AR 137.) The Commission did not specifically say that it was making any other finding. (AR 244.)

Petitioner prevailed on this issue before the Hearing Officer. The Court cannot discern

whether the Commission had a different point of view. Accordingly, the Court cannot review a finding that the Court is unsure was made by the Commission.

B. Petitioner's second argument is unpersuasive

Petitioner's second argument is that a finding that Petitioner "maybe laughed" at a sexual gesture is speculative and unsupported. (Opening Brief, 6:6-7.)

Falcon testified Murguia "kind of chuckled." (AR 656.) The hearing officer found Falcon credible. (AR 128). By contrast, another person in the room did not hear Petitioner laugh. (AR 128). In sum, one person heard the laughter; one person did not.

Exercising its independent judgment, the Court finds that the finding that Petitioner "maybe laughed" is supported by the evidence.

C. Petitioner's third argument is unpersuasive

Petitioner's third argument is that the Department failed to prove any improper conduct related to Kearns's performance evaluation. (Opening Brief, 6:16-17.)

The hearing officer found, and the Commission adopted the following facts:

.
Petitioner raised questions with several employees regarding the appropriateness of Kearns' Outstanding rating, questioned whether there was any favoritism and asked what was going on with Kearns and Falcon. Petitioner said past practice was that employees only received 'Outstanding' if they walked on water.

.
There was no reason for Petitioner to know about Kearns' rating. Petitioner had no input in Kearns evaluation and had no reason to question Kearns' rating.

(AR 133.)

The evidence reflects that Petitioner was not within his purview to request information about Kearns' performance evaluation. (AR 722.) Petitioner was not Kearns' supervisor so he did not have a business need to know what her evaluation was. (AR 841.) Yet Petitioner "raised questions with several employees... questioning whether there was any favoritism, asking 'what's going on...'" [AR 133 (Fact 7).]

Policy 809 states that abusive conduct and respect in the workplace can include misapplication or misuse of authority, which undermines an employee's right to work with dignity and respect. (AR 87.) Kearns was crushed about the rumors going around about her. (AR 588.) Kearns felt unworthy. (AR 601.)

Petitioner offers no evidence to say that performance evaluations are publicly posted. Indeed, the record reflects that ratings are not publicly posted for other employees to see. (AR 539.)

Exercising its independent judgment, the Court finds that substantial evidence supports the finding that Petitioner engaged in improper conduct when it came to Kearns' performance evaluation, and that improper conduct violated Policy 809.

D. Petitioner's fourth argument is not supported by any legal authority or record citation

Petitioner's fourth argument is that the Department's case improperly relied heavily on investigator summaries and secondhand characterizations of witness statements, rather than on verbatim transcripts, recordings, or contemporaneous documents. (Opening Brief, 7:10-14.)

This argument is unavailing. Petitioner cited no authority why this would make the investigation defective. Petitioner provided no analysis how any summary or characterization was defective. Petitioner also stated, "multiple witnesses testified in ways that contradicted the Department's characterization." (Opening Brief, 7:15-16.) No citation to the record was given for this

statement.

Accordingly,

Petitioner has not met their burden to show why the Department's case improperly relied heavily on investigator summaries and secondhand characterizations of witness statements.

E. The Commission did not comply with Topanga

Under Code

of Civil Procedure section 1094.5, subd. (b), an abuse of discretion is established if the decision is not supported by the findings. In *Topanga Assn. for a Scenic Community v. County of Los Angeles*, (1974) 11 Cal.3d 506, 515, the Supreme Court held that "implicit in [Code of Civil Procedure] section 1094.5 is a requirement that the agency which renders the challenged decision must set forth findings to bridge the analytic gap between the raw evidence and ultimate decision or order." The court explained that "among other functions, ... findings enable the reviewing court to trace and examine the agency's mode of analysis.... Absent such roadsigns, a reviewing court would be forced into unguided and resource-consuming explorations; it would have to grope through the record to determine whether some combination of credible evidentiary items which supported some line of factual and legal conclusions supported the ultimate order or decision of the agency...." (11 Cal. 3d at 516-517 [fns. omitted].)

"The

findings requirement 'serves to conduce the administrative body to draw legally relevant sub-conclusions supportive of its ultimate decision; the intended effect is to facilitate orderly analysis and minimize the likelihood that the agency will randomly leap from evidence to conclusions.'" (West *Chandler Blvd. Neighborhood Ass'n vs. City of Los Angeles* (2011) 198 Cal.App.4th 1506, 1521-22.) "Administrative agency findings are generally permitted considerable latitude with regard to their precision, formality, and matters reasonably implied therein." (Southern Pacific Transportation Co. v. State Bd. of Equalization (1987) 191 Cal.App.3d 938, 954.) However, "mere conclusory findings without reference to the record are inadequate." (West *Chandler*, supra, 198 Cal.App.4th at pp. 1521-22.) If the court "cannot discern the analytic route the [agency] traveled from evidence to action," the decision does

not comply with Topanga. (Ibid.)

Significantly in this case, Topanga requires the agency to “justify the penalty imposed, including ‘a statement of the factual and legal basis for the decision.’” (Oduyale v. Cal. State Bd. of Pharmacy (2019) 41 Cal.App.5th 101, 113.) ۞

Here, the Commission did not explicitly state it disagreed with any of the hearing officer’s findings but rejected the hearing officer’s decision to decrease the suspension from ten days to five days. (AR 244-245.) The Commission’s final action, however, did not say why. It consisted of a conclusory approval of the Department’s position that a ten-day suspension was appropriate and a rejection of the Hearing Officer’s recommendation. (AR 244-245.) It contains no independent findings, no explanation for rejecting the Hearing Officer’s credibility determinations, and no analysis connecting the evidence to the ultimate decision.

Absent any findings from the Commission, this reviewing Court is unable to trace and examine the Commission’s mode of analysis. (Topanga, supra, 11 Cal.3d at pp. 516-517.) While this Court does not demand that the Commission elaborate on their decision with great precision or formality, “mere conclusory findings without reference to the record are inadequate.” (West Chandler, supra, 198 Cal.App.4th at pp. 1521-22.)

In its opposition, the Department suggests that the Court can discern the Commission’s reasoning by reference to the Department’s objections, which it characterizes as being based on the proposition that “veiled insinuations an employee slept with a supervisor for advancement are just as damaging as an explicit statement.” (Opp. 15:5-6.) The Department’s argument compounds the problem, rather than solving it. The Hearing Officer found there was not sufficient evidence that Petitioner insinuated that Kearns had an inappropriate sexual relationship with her supervisor. (AR (AR 137.) The Commission did not say otherwise. (AR 244.) If the Commission was making findings different than those of the Hearing Officer, it could have explained that. If the Commission was adopting the factual findings of the Hearing Officer, but changing the result, the Commission could have explained why.

This lack of reasoning makes review extremely difficult if not impossible. The Department, for example, asserts that the “Commission did not ‘reject the Hearing Officer’s findings.’” (Opp. at

14:19-20.) However, in the argument referenced in the previous paragraph of this ruling, the Department seems to assume that, based on its objection, the Commission did reject the Hearing Officer's determination (at AR 137) that there was insufficient evidence of Petitioner insinuating that Kearns was in a sexual relationship with her supervisor. The February 10, 2025 Final Commission action stated that the Commission "approved findings in the above-entitled case." (AR 247.)

Does that mean it adopted the Hearing Officer's findings or made different findings? The Court cannot discern which path the Commission took to reach its decision.

Petitioner argues that this Court should decide this case in his favor, rather than remanding the case back to the Commission. The Court finds no basis to decide in Petitioner's favor without remanding the case. None of the cases cited by Petitioner indicate remand is disfavored in situations like the one before the Court. *Skelly v. State Personnel Bd.* (1975) 15 Cal.3d 194, 217-218 and *Talmo v. Civil Service Commission* (1991) 23 Cal.App.3d 210,229-230 do not discuss a trial court's power to remand a case under C.C.P. § 1094.5, subd. (e). *Topanga, supra*, 11 Cal.3d at p. 516 cautions against the Court not remanding the case. Absent findings from the administrative agency below, "a reviewing court would be forced into unguided and resource-consuming explorations; it would have to grope through the record to determine whether some combination of credible evidentiary items which supported some line of factual and legal conclusions supported the ultimate order or decision of the agency." (*Id.*, at p. 516.)

Accordingly,
on remand, the Commission must explain its rulings consistent with *Topanga*.

CONCLUSION

The Court GRANTS the petition for writ of mandate. The Court directs the Commission to vacate its decision and directs the Commission to comply with *Topanga Assn. for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506. The Court offers no opinion on whether the Commission imposes discipline on Petitioner, and if so, for how long, but the Commission must make clear why it has chosen a particular level of discipline.

IT IS SO ORDERED.

Dated: September

18, 2026

Joseph
Lipner

Superior
Court Judge